

Order Confirmation - Terms and Conditions

1. *Definitions.* These Terms and Conditions of Order Confirmation are referred to below as “these Terms.” “Seller” means SIFP and shall be for the benefit of SIFP and its affiliates who may also sell to Buyer (“Affiliates”). “Buyer” means the company referenced in the Order Confirmation or corresponding credit application, and its subsidiaries and affiliates ordering Goods from Buyer. These Terms and the quotation or order confirmation into which they are incorporated are referred to collectively herein as the “Order Confirmation.” The order evidenced by the Order Confirmation is the “Order.” The goods to be purchased by the Buyer under the Order are referred to as the “Goods.”

2. *Applicability.*

a. These Terms and the Buyer’s accepted credit application are the only terms which govern the sale of the Goods by Seller to Buyer. Notwithstanding anything herein to the contrary, if a written contract signed by both parties is in existence covering the sale of the Goods covered hereby, the terms and conditions of said contract shall prevail to the extent they are inconsistent with these Terms.

b. The Order Confirmation, credit application, and accompanying invoice comprise the entire agreement between the parties, and supersede all prior or contemporaneous understandings, agreements, negotiations, representations and warranties, and communications, both written and oral. Seller’s acceptance of the Order is expressly conditioned on Buyer’s acceptance of these Terms in their entirety without any additions, deletions, modifications or exceptions. These Terms prevail over any of Buyer’s general terms and conditions of purchase regardless of whether or when Buyer has submitted its purchase order or such terms. Fulfillment of Buyer’s order does not constitute acceptance of any of Buyer’s terms and conditions and does not serve to modify or amend these Terms.

3. *Payment Terms.* The approved payment terms are set forth in the credit application unless specifically modified by the Order Confirmation. In no event shall payment to Seller be subject to any retention, “pay when paid” or “pay if paid” provisions.

4. *Delivery.* The goods will be delivered within a reasonable time after the receipt of Buyer’s Order, subject to the availability of the Goods. If Seller delivers to Buyer a quantity of Goods of up to 10% more or less than the quantity set forth in the Order Confirmation, Buyer shall not be entitled to object to or reject the Goods or any portion of them by reason of the surplus or shortfall and shall pay for such Goods at the price set forth in the Order Confirmation adjusted pro rata. Any change in freight rates between the date of the Order and bill of lading date above and beyond the negotiated price shall be for the account of Buyer. For any Order identifying the delivery term “DLVD” or delivered, shall mean that the Goods will be delivered via common carrier to the designated place of destination, the default 2020 INCOTERM applicable to DLVD sales is CIF.

5. *Limited Warranty.*

a. To the extent the Goods are subject to grading agency rules, the grading and reinspection rules of the applicable grading association (WWPA, WCLIB, SPIB, APA, NLGA, NELMA or other recognized grading agency) whose stamp appears on the goods purchased by the Buyer shall be deemed included in and part of the contract except as otherwise set forth herein. Any inconsistency between those rules and these Terms shall be resolved in favor of these Terms. No other modification of those rules shall be effective unless made in writing and signed by Seller’s authorized representative and incorporated into the Order. All claims that relate to Goods failing to meet grade will be resolved through the grading agency and the manufacturer/mill who produced the Goods.

b. **EXCEPT FOR THE LIMITED WARRANTIES REFERENCED IN SECTION 5(a) SELLER MAKES NO WARRANTY WHATSOEVER WITH RESPECT TO THE GOODS, AND SPECIFICALLY DISCLAIMS ANY (a) WARRANTY OF MERCHANTABILITY; OR (b) WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE; WHETHER EXPRESS OR IMPLIED BY LAW, COURSE OF DEALING, COURSE OF PERFORMANCE, USAGE OF TRADE, OR OTHERWISE.**

c. Products manufactured by a third party (“Third Party Product”) may constitute, contain, be contained in, incorporated into, attached to or packaged together with, the Goods. For the avoidance of doubt, **SELLER MAKES NO REPRESENTATIONS OR WARRANTIES WITH RESPECT TO ANY THIRD-PARTY PRODUCT, INCLUDING ANY (a) WARRANTY OF MERCHANTABILITY; (b) WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE; (c) WARRANTY OF TITLE; OR (d) WARRANTY AGAINST INFRINGEMENT OF INTELLECTUAL PROPERTY RIGHTS OF A THIRD PARTY; WHETHER EXPRESS OR IMPLIED BY LAW, COURSE OF DEALING, COURSE OF PERFORMANCE, USAGE OF TRADE, OR OTHERWISE.**